

judgment ought to have been given against the plaintiff upon the declaration, and not upon the verdict; and so no costs ought to have been given.

But all the Court conceived, because the defendant is found "not guilty," and what he did was as officer, and the statute gives him double costs for his vexation, which vexation appears, the plaintiffs shall not take advantage of the insufficiency of the declaration and writ to excuse themselves of costs.

[175] CASE 21. JEFFES' CASE.

A libel on a person who had been a Judge, charging him with perjury during the time he was in office, is an indictable offence. *Post.* 504.

2 Term Rep. 473.

Counsel assigned on an indictment for a misdemeanor. *Post.* 504.

1 Sid. 271.

The punishment of pillory may be inflicted for a libel. *Post.* 504.

5 Co. 125. 3 Inst. 174. Fort. 201. 5 Com Dig. 588. Stra. 934. 8 Mod. 178.
1 Hawk. P. C. 357.

Jeffes was indicted, for that he exhibited an infamous libel, directed to the King, against Sir Edward Coke, late Chief Justice of the King's Bench, and against the said Court, for a judgment given in the said Court in the case of Magdalen College, affirming the said judgment to be treason, and calling him therein "traitor, perjured Judge," and scandalizing all the professors of the law, and containing much other scandalous matter; and fixed this libel upon the great gate at the entrance of Westminster-hall, and in divers other public places.

And being hereupon arraigned, he prayed that counsel might be assigned him; which was granted, and he had them, but would not be ruled to plead as they advised; but put in a scandalous plea, and insisting upon it, affirmed that he would not plead otherwise.

Whereupon it was adjudged, he should be committed to the marshal, and that he should stand upon the pillory at Westminster and Cheapside with a paper mentioning the offence, and with such a paper be brought to all the Courts at Westminster, and be continued in prison until he made his submission in every Court, and that he should be bound with sureties to be of good behaviour during his life, and should pay a thousand pounds fine for that offence to the King.

CASE 22. R. C.'S CASE.

The King's Bench may award execution to be done by the marshal upon a person attainted of felony, who is brought into Court by *hab. corp.* and the record of conviction removed by *certiorari*. *Ante.* 90.—1 Sid. 72. 1 Lev. 61. 1 Keb. 244. 2 Hale, 4. Poph. 131. Cro. Jac. 495. Foster, 140. Strange, 553. 4 Burr. 2086. 2 Hawk. P. C. 656.

The same day R. C. was brought to the Bar (being removed from St. Alban's by *habeas corpus* and *certiorari*, where he was a prisoner, and attainted for felony, viz. for horse-stealing). And it was now demanded of him, what he could say why execution should not be done upon the indictment? And because he could not shew good cause to stay the execution, he was committed to the marshal, who was commanded to do execution: and the next day he was hanged.